# Topic 19 — Acts & Governance

**Covers syllabus (click to expand)**

**Acts:** Disaster Management Act | RTI | RTE | NFSA | Forest Rights | PHRA | Consumer Protection | Whistle Blowers | PESA | SC/ST PoA | POCSO (पॉक्सो) | Prevention of Corruption | Citizenship Act | Labour Codes (चार श्रम संहिताएं) | RPA 1950 & 1951 | Important Acts raata | GOI Acts 1909 / 1919 / 1935
**Governance:** E-Governance | Citizen Charter (नागरिक अधिकार-पत्र) | Good Governance | Transparency & Accountability | Social Audit (सामाजिक अंकेक्षण) | Sevottam (सेवोत्तम मॉडल) | Public Grievance | Digital India (डिजिटल इंडिया) | Mission Karmayogi (मिशन कर्मयोगी) | Civil Services Neutrality | Code of Conduct (आचरण नियमावली) vs Ethics | Lateral Entry | Second ARC

**Sources baked in:** Laxmikanth (statutory rights / governance), named Acts, DARPG / 2nd ARC / Digital India / NPCSCB, UPPCS PYQs 2018–2025 **Weight:** ★★★ — MKSS→**RTI** (2019); NDMA=**PM** (2021); NFSA **75/50** (2019/24); PESA **1996** (2022); Wages Code **not** Contract Labour (2021); ICT e-gov **cuts cost + raises citizen input, not red-tape** (2024); **Adi Karmayogi = MoTA** not DoPT (2025) **Last verified:** September 2026 — Ghatnachakra Extra Drill (Important Acts and Governance); teaching gap-pass from dump **Current Affairs:** Digital India **2015** / e-Kranti 44 MMPs; Mission Karmayogi **2020** + CBC **2021**; Adi Karmayogi **June 2025 MoTA**; lateral-entry reservation debate **2024**; Good Governance Day **25 Dec**

## Current Affairs

- **2025:** "Accountability" is **not** a food-security dimension under NFSA. Consumers can bargain below the MRP. **Adi Karmayogi** (launched June) belongs to the **Ministry of Tribal (आदिवासी) Affairs**, not Mission Karmayogi.
- **2024:** NFSA covers **75%/50%** (rural/urban (नगरीय)), and was **not** enforced on 5 July 2010. ICT-based e-governance **reduces cost** and **increases citizen input** — it does **not** cut transparency or add red-tape.
- **2022:** PESA was passed in **1996**.
- **2021:** The **NDMA** (आपदा प्राधिकरण) is chaired by the **PM**. The ECO Mark denotes environment-safe goods. The Wages Code does **not** include Contract Labour.
- **2019:** MKSS is linked to **RTI**. NFSA's woman-head provision was also tested.
- **2019–24 (running themes):** the CPA, 2019; the RTI Amendment; the CAA's 2024 upholding; Mission Karmayogi (2020); the CBC (2021); and the lateral-entry debate (2018–24).

## Frame

This chapter is about **which Act, which year, and which coverage trap** — plus **how the State actually delivers** on the ground (e-governance, citizen charters, the ARCs).

- The **RTE Act** rides on the **86th Amendment** and **Article 21A**.
- **PESA** was passed in **1996**, and it applies only to **Fifth-Schedule** areas.
- The modes of acquiring citizenship come from **Article 11** read with the **Citizenship Act, 1955**.
- **RPA 1950** covers electoral rolls; **RPA 1951** covers the conduct of elections.
- The **UAPA** (यूएपीए) is tried through the ordinary criminal-trial route, while **AFSPA** (अफस्पा) applies only to a notified "disturbed area".
- The **CAG** audits government accounts, but bodies like the **NHRC** (राष्ट्रीय मानव अधिकार आयोग), **CIC**, and **NDMA** are **statutory** creations of their respective Acts — not constitutional bodies.

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## Disaster Management Act, 2005

**Post-2004 tsunami (सुनामी) statute.** Nodal ministry is the **MHA**. It is a statutory Act, not a constitutional provision.

- The **NDMA** is chaired by the **Prime Minister** (2021 key fact) — never the Home Minister.
- It also has a Vice-Chairperson and up to **9** other members, all nominated by the PM.
- The **SDMA** is chaired by the **Chief Minister**, and every State **shall** constitute one.
- The **DDMA** is chaired by the **District Magistrate**, with the elected local head sitting (बैठक) as co-chairperson.
- The **NEC** (National Executive Committee) is chaired by the **Cabinet Secretary**.
- The **SEC** (State Executive Committee) is chaired by the **Chief Secretary**.
- The **NDRF** as a **force** (battalions under the MHA) is different from the **NDRF** as a **fund** — do not confuse the two.
- The **NIDM** is the institute responsible for training and capacity-building.
- The **SDRF** is the State-level disaster response fund.
- A "disaster" under the Act means a catastrophe, mishap, or calamity — **natural or man-made**, including one caused by accident or negligence — that is beyond the coping capacity of the affected community.
- The Act provides for National, State, and District **Disaster Management Plans**, with the NDMA laying down the guidelines for all of them.
- The standard disaster-management cycle runs mitigation → preparedness → response → recovery.
- Obstruction, a false claim, or misappropriation of funds under the Act is a punishable offence (s.51 onward).
- COVID-19 was handled using this Act **plus** the Epidemic Diseases Act, **1897** — these are two separate statutes and should not be merged into one answer.

**PYQ — UPPCS Prelims 2021, Q26**

The National Disaster Management Division in India is the nodal division in the Ministry of Home Affairs for disaster management. Who is the Ex-officio Chairman of the National Disaster Management Authority?

A. The Prime Minister B. The Home Minister C. The Defence Minister D. The Health and Family Welfare Minister

**Show answer**

**Ans: A — PM.** The *division* sits in MHA; the *Authority* is chaired by the PM.

## RTI Act, 2005

**MKSS statute.** Presidential assent on **15 June 2005**; in force from **12 October 2005**. It grew out of the **MKSS** movement (Aruna Roy, Rajasthan). It is a statutory Act, not a constitutional right.

- Its predecessor, the Freedom of Information Act, **2002**, was weaker and was replaced by this Act.
- *Namit Sharma v. Union of India* is a leading Supreme Court matter on the composition and qualifications of Information Commissioners under the RTI Act.
- The application fee is ordinarily **₹10**; **BPL applicants pay no fee**.
- The PIO must reply within **30 days**, or within **48 hours** if life or liberty is involved.
- If a third party's information is involved, an extra window applies, taking the total up to **40 days**.
- The first appeal must be filed within **30 days** of the PIO's reply (or of a deemed refusal).
- The appellate officer must dispose of the first appeal within **30 days**, extendable to **45 days** with reasons recorded.
- The second appeal lies to the **CIC / SIC** within **90 days**.
- The penalty on a defaulting PIO is **₹250 per day**, capped at **₹25,000**, and disciplinary action can also be recommended.
- **Section 4** requires **suo motu / proactive disclosure** by public authorities.
- **Section 8** lists exemptions — sovereignty, security, Cabinet papers, commercial confidence, fiduciary relationships, **privacy (clause j)**, and ongoing investigations, among others.
- Most Section 8 exemptions carry a **20-year sunset**, though a few do not.
- **Section 22** makes RTI **override** the Official Secrets Act only **to the extent of any inconsistency** — the OSA is **not repealed**.
- **Section 24** exempts listed intelligence and security organisations, except for allegations of **corruption or human-rights violations**.
- A "public authority" includes the government plus any body that is owned, controlled, or **substantially financed** by it, and NGOs that are so financed.
- The CIC held in **2013** that political parties are public authorities under the Act, but this ruling has **not been enforced**.
- The **2019 Amendment** left the term and salary of the CIC and Information Commissioners to be **prescribed by the Centre**, ending their earlier statutory parity with the CEC.
- The first Chief Information Commissioner was **Wajahat Habibullah**.
- The CIC consists of a Chief Information Commissioner and up to **10** Information Commissioners.
- They are selected by a panel of the **Prime Minister, the Leader of Opposition, and a Union Cabinet Minister (कैबिनेट मंत्री)** nominated by the PM.
- The SIC follows the same pattern at the State level — **CM, Leader of Opposition, and a Cabinet Minister**.
- The SIC's term and salary are also governed by the **2019** Centre-prescribed model.

**PYQ — UPPCS Prelims 2019, Q100**

Mazdoor Kisan Shakti (शक्ति) Sangathan (MKSS), a Social Movement has been associated with which of the following in India?

A. RTE Act B. RTI Act C. MGNREGA D. National Health Mission (NHM)

**Show answer**

**Ans: B — RTI.** MKSS ≠ RTE.

## Right to Education Act, 2009

**Working statute under the 86th Amendment / Art. 21A.** It came into force on **1 April 2010** — not on the 2002 assent date of the 86th Amendment, and not on the 2009 date the Act itself was passed.

- The Act covers children aged **6–14**. Below age 6, the constitutional hook is the recast **Art. 45** (early childhood care), not this Act's compulsion.
- The neighbourhood norm requires a primary school within **1 km** and an upper-primary school within **3 km**.
- Under **s.12(1)(c)**, private unaided schools must reserve **25%** of seats for EWS/disadvantaged-group children, and the State reimburses the cost.
- The Act bars a **capitation fee**, the **screening or interview** of the child or parent, and **private tuition** by the same school's own teacher.
- The **School Management Committee (SMC)** must have **three-fourths** parents or guardians among its members.
- The Pupil-Teacher Ratio is **1:30** at the primary stage and **1:35** at the upper-primary stage (per the Act's schedule).
- The Act prescribes **200** working days at the primary stage and **220** at the upper-primary stage, with **800** and **1,000** instructional hours respectively.
- The original Act allowed **no detention** up to Class **8**.
- The **2019 Amendment** now lets a State detain a child in **Classes 5 and 8** after an examination and a re-test.
- The Act is monitored by the **NCPCR** at the Centre and the **SCPCR** in each State.
- Do not confuse this with the **93rd Amendment / Art. 15(5)**, which allows reservation in **private colleges** — that is a separate provision, not RTE.

## National Food Security Act, 2013

**Food law; not enforced on 5 July 2010.** It received assent on **10 September 2013** — this exact date is a 2024 trap.

- Coverage extends up to **75% of the rural** and **50% of the urban** population, identified through SECC / State lists — it does **not** cover "every resident".

- A priority household gets **5 kg** of grain per person per month, at **₹3/kg** rice, **₹2/kg** wheat, and **₹1/kg** coarse grain.
- An **AAY** household instead gets a flat **35 kg per household** per month — not 5 kg per person.
- Under **s.13**, the eldest woman **aged 18 or above** in the household is treated as its head for the ration card.
- Pregnant and lactating women are entitled to a **₹6,000** maternity benefit, paid in instalments.
- Children aged **6 months to 6 years** get an ICDS take-home ration or hot meal, and children aged **6–14** get the Mid-Day Meal at school.
- Grievances go through an internal mechanism, then to the **DGRO** (District Grievance Redressal Officer), and then to the **State Food Commission**.
- The nodal department is Food & Public Distribution, under the Ministry of Consumer Affairs, Food and Public Distribution.
- The FAO-style dimensions of food security are **availability, access, utilisation/affordability, and stability** — **"accountability" is not** one of them, a trap seen in 2025.

**PYQ — UPPCS Prelims 2024, Q118**

With reference to “National Food Security Act”, which of the following statements are correct?

1. It will cover up to 75% rural and 50% urban population.
2. It has special focus on nutritional support to women and children.
3. It was enforced on July 5, 2010.

A. 2 and 3 B. 1 and 3 C. 1, 2 and 3 D. 1 and 2

**Show answer**

**Ans: D.** 3 is **false** (2013, not 2010).

**PYQ — UPPCS Prelims 2019, Q73**

With reference to the National Food Security Act, which of the following statements is/are correct?

I. It will cover upto 75 percent rural and 50 percent urban population. II. Special focus on nutritional support to women and children. III. Eldest woman of above 18 years age will be head of household.

A. I and II B. II and III C. I, II and III D. None

**Show answer**

**Ans: C**

## Forest Rights Act, 2006

**ST + OTFD forest-rights statute.** Its nodal ministry is the **Ministry of Tribal Affairs** — not the Environment Ministry, despite the subject.

- It covers forest-dwelling **Scheduled Tribes** and **Other Traditional Forest Dwellers (OTFDs)** who have lived there for **75 years**, or three generations, before **13 December 2005**.
- The cut-off date for occupation is **before 13 December 2005**.
- The individual ceiling for habitation or cultivation is ordinarily up to **4 hectares**.
- Community rights recognised under the Act include **nistar** rights, ownership of **minor forest produce (MFP)**, grazing, fishing, and access to water bodies.
- The Act also recognises the **community forest resource (CFR)** (सामुदायिक वन संसाधन अधिकार) right and **habitat (वास स्थान) rights for PVTGs**.
- The process is initiated by the **Gram Sabha** (s.6), which then goes to the Sub-Divisional Committee and finally to the District Level Committee.
- Under **s.5**, the Gram Sabha and right-holders have a duty to protect wildlife, forests, and biodiversity.
- The MoEFCC (पर्यावरण, वन और जलवायु परिवर्तन मंत्रालय) may notify a **critical wildlife habitat**, but relocation from it requires the **free, informed consent** of the Gram Sabha and payment of compensation.
- Forest villages are to be converted into revenue villages under the Act.

## Protection of Human Rights Act, 1993

**NHRC / SHRC statute.** It is **recommendatory**, and is separate from **Article 338** (which creates the NCST (राष्ट्रीय अनुसूचित जनजाति आयोग)). It was amended in **2006** and **2019**.

- Since the **2019 Amendment**, the Chairperson can be a retired **CJI or any retired SC judge** — earlier, only a retired CJI qualified.
- The Chairperson's term is **3 years, or until age 70**, whichever is earlier.
- The Commission consists of the Chairperson plus members with knowledge of human rights, including **at least one woman**.
- The chairpersons of the NCSC (राष्ट्रीय अनुसूचित जाति आयोग), NCST, NCBC (राष्ट्रीय पिछड़ा वर्ग आयोग), NCW, NCPCR, and NCM (असहयोग), along with the CCPD, sit as **ex-officio** members.
- A complaint must ordinarily be filed within **1 year** of the incident.
- The NHRC can inquire into complaints, visit jails, and make recommendations, but it is **not** a criminal court — its powers are purely **recommendatory**.
- Its inquiry into the armed forces is restricted and must go **through the Central Government**.
- An SHRC Chairperson (2019) must be a retired **Chief Justice or judge of a High Court**.
- An SHRC cannot take up a matter that is already with the NHRC.
- Human Rights Day is observed on **10 December** — not 29 January.

## Consumer Protection Act, 2019

**Repeals COPRA, 1986.** It came into force on **20 July 2020** and added the CCPA, product liability, and e-commerce coverage.

- Section 2(9) grants six consumer rights: safety, information, choice, being heard, redressal, and consumer education.
- The **CCPA** (Central Consumer Protection Authority) can inquire into violations, order a **recall**, take up class-action matters, and act against misleading advertisements.
- **Product liability** can attach to the manufacturer, seller, or service provider for a defect or deficiency.
- Each Consumer Commission has a **mediation cell** attached to it, allowing settlement **without** a full trial.
- Coverage of **e-commerce** and **unfair contracts** was added explicitly in 2019 — the 1986 Act was silent on both.
- A misleading advertisement attracts a penalty of up to **₹10 lakh** for a first offence and **₹50 lakh** for a repeat one, and the endorser can be **banned for 1 year**.
- The present three-tier pecuniary structure is: District Commission up to **₹50 lakh**, State Commission **₹50 lakh–2 crore**, and NCDRC **above ₹2 crore**.
- A complaint must ordinarily be filed within **2 years** of the cause of action.
- **National Consumer Day** is **24 December**; **World Consumer Rights Day** is **15 March** — do not swap the two.
- The **ECO Mark**, introduced by the **BIS in 1991**, certifies environment-friendly goods — it does **not** signify exports or "best quality".

**PYQ — UPPCS Prelims 2021, Q7**

The symbol ‘ECOMARC’ is related to which of the following?

A. Goods of best quality B. Safe goods for environment C. Exported goods D. Imported goods

**Show answer**

**Ans: B**

**PYQ — UPPCS Prelims 2025, Q137Assertion (A):** Consumers can bargain below the Maximum Retail Price (MRP).

**Reason (R):** MRP is the price above which a seller cannot charge a buyer.

A. Both true, R not explanation B. A false R true C. A true R false D. Both (A) and (R) are true and (R) is the correct explanation of (A)

**Show answer**

**Ans: D.** MRP is a **ceiling**; bargaining below it is allowed.

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## Whistle Blowers Protection Act, 2014

**Revealing a whistle-blower's identity is itself an offence** under this Act. It protects public-interest disclosures against **corruption or wilful misuse of power** inside a **public** authority. Do not confuse it with RTI, the Lokpal, or the CVC's PIDPI resolution.

- What is protected is the **complainant's identity** — revealing it is punishable in itself.
- Complaints go to a notified **competent authority**, such as the CVC or a specified constitutional or statutory head.
- Private-sector employees are, as a general rule, **not covered**.
- A proposed national-security exclusion was fought over in a 2015 Bill but was **not** enacted as a clean override.
- The Act received assent in **May 2014**, but its rules and commencement have lagged — do **not** write that it has been "fully working since 2014".
- It is different from **RTI**, where any citizen can seek a file; from the **Lokpal Act, 2013**, which is an inquiry body; and from the CVC's **PIDPI** resolution, which is only an administrative window and not a statute.

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## PESA Act, 1996

**Extends Part IX to Fifth Schedule areas.** It came into force on **24 December 1996**, and the paper wants the year **1996** — not 1993, 1995, or 1998. It followed the recommendations of the **Bhuria Committee**.

- It applies only to the **10 Fifth-Schedule States** — **not** to Sixth Schedule (6वीं अनुसूची) areas, and **not** to Nagaland, Meghalaya, or Mizoram (which are excluded under Art. 243M).
- The reason PESA was needed is that **Art. 243M** does not let Part IX automatically apply to Fifth Schedule areas.
- Under **s.4**, the Gram Sabha must be **consulted** before land acquisition in the area.
- Its **prior recommendation** is mandatory before granting a mining lease for minor minerals.
- It also holds **ownership of minor forest produce**, control over the sale of **intoxicants**, the power to prevent land alienation, and the management of village markets.
- Under **s.4(d)**, the Gram Sabha is competent to safeguard tribal traditions and customary methods of dispute resolution.

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## SC/ST (Prevention of Atrocities) Act, 1989

**Atrocities statute — heavier than the PCR Act, 1955.** It came into force on **30 January 1990**. Its constitutional anchor is **Art. 17**, the ban on untouchability.

- Its neighbour, the **PCR Act, 1955**, deals with civil rights and untouchability; the **PoA Act** deals with **atrocities** and is the stronger of the two.
- Trials are held in a sessions-level **Special Court**.
- From **2015**, every State **shall** specify **Exclusive** Special Courts for speedier trial.
- The **2015 Amendment** added new offences such as social or economic boycott (बहिष्कार) and wrongful occupation of land, along with victim and witness rights and a presumption of guilt in some cases.
- Investigation must be conducted by an officer of **DSP rank**. Older Rules used a **30-day** investigation-report idea; the **2016 Rules** emphasise a **60-day** charge-sheet target (often

remembered with the 2015 Amendment's speedy-trial push).

- The Supreme Court's *Dr Subhash Kashinath Mahajan* judgment (**2018**) diluted the arrest and anticipatory-bail safeguards.
- Parliament responded with the **2018 Amendment**, which restored **s.18** (**no anticipatory bail**) and inserted **s.18A** (no preliminary inquiry and no prior approval needed before arrest, undoing what the Court had required).
- Relief, rehabilitation, travel, and compensation for victims are governed by the **1995 Rules**.

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## POCSO Act, 2012

**Sexual offences against a child below 18.** Its nodal ministry is **Women and Child Development** — not the MHA. It is gender-neutral.

- It covers penetrative and sexual assault, sexual harassment, and **pornography** involving a child, with the victim's age reckoned on the date of the offence.
- **Section 19** makes reporting **mandatory**; failure to report attracts imprisonment up to **6 months** and/or a fine.
- The police must record the child's statement **within 24 hours**.
- Trial is held before a sessions-level Special Court, is conducted **in-camera**, avoids calling the child repeatedly, and allows a **support person** to assist.
- Investigation should preferably be completed within **2 months**, and trial as far as possible within **1 year** of cognizance.
- The **2019 Amendment** introduced the **death penalty** for aggravated penetrative sexual assault and added new offences for storing or transmitting child pornography.
- Do not confuse POCSO with the **NCPCR**, which only monitors it; with the **JJ Act (किशोर न्याय (जेजे) अधिनियम), 2015**, which deals with children needing care or in conflict with law; or with the ordinary adult-rape provisions of the IPC/BNS.

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## Prevention of Corruption Act, 1988

**Criminal misconduct by a public servant.** The **2018 Amendment** made giving a bribe an offence too, added a prior-approval requirement, made a commercial organisation liable, and set a 2-year trial target.

- Before 2018, mainly the **taker** of a bribe was liable; the **2018 Amendment** made **giving** a bribe an offence as well.
- An exception exists for a person **compelled** to give a bribe who reports it within **7 days**.
- Under **s.17A**, prior **approval** of the competent authority is needed before an enquiry or investigation into a public servant's official recommendation or decision — except in trap or on-the-spot cases.
- Trial is conducted by a **Special Judge**, with a **2-year** target that can be extended for recorded reasons.
- Under **s.9**, a commercial organisation can itself be held liable for bribing someone to obtain or retain business.

- Under **s.19**, prior sanction is needed to prosecute a serving public servant.
- The main investigating agencies are the **CBI** (केन्द्रीय अन्वेषण ब्यूरो) and the State **Anti-Corruption Bureaus**, with **CVC** oversight — the CBI derives its powers from the DSPE Act, 1946, and the CVC from the CVC Act, 2003.
- This Act is different from the **Lokpal Act, 2013**, and from the **Prevention of Corruption Act, 1947**, which it repealed.

## Citizenship Act, 1955

**Working law under Art. 11.** There are five ways to acquire citizenship and three ways to lose it. Ordinary naturalisation takes **11 years**, but the CAA cuts this to **5 years** for listed communities. An OCI card is **not** the same as dual citizenship.

- The five ways to **acquire** citizenship are birth, descent, registration, naturalisation, and incorporation of territory.
- The three ways to **lose** citizenship are renunciation, termination, and deprivation.
- Naturalisation ordinarily requires **11 years** of residence in India.
- The **CAA** cuts this residence requirement to **5 years** for the communities it lists.
- Since a **2003** amendment, an illegal migrant is generally barred from citizenship by birth, registration, or naturalisation, as the Act provides.
- The **CAA, 2019** covers Hindu, Sikh, Buddhist, Jain, Parsi, and Christian migrants from **Pakistan, Afghanistan, and Bangladesh** who entered India by **31 December 2014**.
- The CAA does **not** cover Muslim migrants, and it does **not** apply to notified Sixth Schedule or Inner Line Permit areas.
- The Supreme Court **upheld the CAA in 2024**.
- **OCI (Overseas Citizen of India)** is a **statutory status**, not dual citizenship — India does **not** ordinarily allow a person to hold two passports.
- In Assam, **Section 6A** of the Citizenship Act was also **upheld by the Supreme Court in 2024**.
- The **NRC** is a separate statutory/executive process, and should not be confused with the CAA.

## Labour Codes

**Four Codes replace roughly 29 old labour laws.** Full national enforcement is still **staggered**, as a matter of current affairs. Remember: the **Wages Code, 2019** covers minimum wages, payment of wages, bonus, and equal remuneration — it does **NOT** cover Contract Labour.

- The **Code on Wages, 2019** absorbed the **Minimum Wages Act**, the **Payment of Wages Act**, the **Payment of Bonus Act**, and the **Equal Remuneration Act**.
- It carries forward equal remuneration (no gender wage discrimination), timely payment of wages, and bonus eligibility as earlier provided.
- The **Industrial Relations Code, 2020** absorbed the Industrial Disputes Act, the Trade (पण्याध्यक्ष) Unions Act, and the Industrial Employment (Standing Orders) Act.

- Standing orders now apply only to establishments with **300 or more** workers, up from **100** earlier.
- Any strike or fact-out now requires a **14-day** notice in any establishment.
- The Code also allows **fixed-term employment**.
- The **OSH & Working Conditions Code, 2020** absorbed the Factories Act, the **Contract Labour Act**, the Mines Act, and the Inter-State Migrant Workmen Act.
- It allows women to work night shifts **with their consent and adequate safety measures**.
- The **Code on Social Security, 2020** absorbed the EPF Act, the ESI Act, the Maternity Benefit Act, the Payment of Gratuity Act, and provisions for gig and platform workers.
- Aggregators must contribute to social security for gig workers as notified.
- Maternity leave remains **26 weeks**, carried over from the 2017 Amendment into this Code.
- The **Central Government** fixes a national **floor wage**, and no State's minimum wage can fall **below** it.
- All four Codes have been notified, but simultaneous all-India enforcement is still **staggered**, pending each State's rules.

**PYQ — UPPCS Prelims 2021, Q72**

Which of the following labour related Acts have been amalgamated into the 'Code on Wages, 2019'?

I. Minimum Wages Act II. Payment of Bonus Act III. The Contract Labour Act IV. Equal Remuneration Act

A. I and II only B. II and III only C. I, II and IV only D. I, II, III and IV

**Show answer**

**Ans: C.** Contract Labour → **OSH Code 2020**, not Wages.

## RPA 1950 & 1951

**Rolls vs conduct.** Identity only.

| Act | Owns |
|---|---|
| **RPA 1950** | Electoral **rolls** · allocation of **seats** · delimitation machinery · voter qualifications |
| **RPA 1951** | **Conduct** of elections · nominations · **corrupt practices (s.123)** · election petitions · **s.29A** party registration · **s.8** disqualification |
| Trap | Do **not** write 1950 as the campaign / petition statute |

## British Acts

If a paper mixes "important Acts": Regulating **1773** · Pitt **1784** · Charter **1813/33/53** · IC **1861/92** · **1909/19/35**. Do **not** re-teach here.

## Important Acts — raata (catch-all syllabus bullet)

**Learn each Act with its year and one clean fact.** The **UAPA** is tried through the ordinary criminal-trial route, and the **AFSPA** applies only to a notified "disturbed area". The **Official Language Act, 1963** is why English continues alongside Hindi.

- The **Epidemic Diseases Act, 1897** is still in force — COVID-19 was handled using this Act **plus** the Disaster Management Act, **2005**, so remember these are two separate statutes.
- The **Official Secrets Act, 1923** was **not repealed** by the RTI Act; RTI's **s.22** only overrides it to the extent of any inconsistency.
- The **PCR (Untouchability) Act, 1955** protects civil rights; its heavier neighbour is the **PoA Act, 1989**.
- The **Bonded Labour (बंधुआ मज़दूरी) System (Abolition) Act, 1976** identifies, frees, and rehabilitates bonded labourers.
- The **Water (Prevention and Control of Pollution) Act, 1974** was India's first major pollution statute, and it created the **CPCB** (केंद्रीय प्रदूषण नियंत्रण बोर्ड) and the **SPCBs**.
- The **Wildlife Protection (वन्यजीव सुरक्षा) Act, 1972** maintains schedules of protected species, created the **NBWL**, and was amended in **2022** to rationalise those schedules.
- Under the **Forest (Conservation) Act, 1980**, diversion of forest land for a non-forest purpose needs the **Central Government's** approval.
- The **Air (Prevention and Control of Pollution) Act, 1981** came after the Water Act of 1974.
- The **Environment (Protection) Act, 1986** is the umbrella environmental law passed after the **Bhopal gas tragedy**, and it lets the Centre frame rules to fill any residual gap.
- The **Child Labour (Prohibition (प्रतिषेध) and Regulation) Act, 1986**, as amended in **2016**, bans employing a child under **14** in any occupation, and bans employing an adolescent aged 14–18 in hazardous occupations.
- **MGNREGA, 2005** guarantees **100 days** of wage employment; while MKSS is sometimes linked to it as an option, MKSS's **primary** key fact remains **RTI**.
- The **Protection of Women from Domestic Violence Act, 2005** gives civil-law protection to women in a domestic relationship; it was brought into force on **26 October 2006**.
- Under the **Prohibition of Child Marriage Act, 2006**, a "child" is a boy below **21** or a girl below **18**.
- The **Maintenance and Welfare of Parents and Senior Citizens Act, 2007** sets up a tribunal to enforce maintenance by children or relatives.
- The **National Green Tribunal Act, 2010** created the NGT (in force from **18 October 2010**), a green bench that is **not** a constitutional court, with members serving a 5-year term up to age 70; an appeal lies to the Supreme Court within **90 days**.
- The **Foreign Contribution (Regulation) Act, 2010**, amended in **2020**, bars public servants from receiving foreign contributions, requires an account in a specified SBI branch in New Delhi, and caps administrative expenses at **20%**.
- The **Biological Diversity Act, 2002** created the **NBA**, State Biodiversity Boards, and Biodiversity Management Committees, and implements the Nagoya Protocol on access and benefit-sharing.
- The **Prevention of Money Laundering Act, 2002** is enforced by the **ED**, and the Supreme Court in **2022** upheld its core provisions while reading (रीडिंग) in some safeguards.

- The **CVC Act, 2003** gave the Central Vigilance Commission statutory status — the CVC has no separate constitutional article.
- The **Information Technology Act, 2000**, amended in **2008**, governs cyber offences and intermediaries; its **s.66A was struck down in 2015** in *Shreya Singhal*.
- The **Lokpal and Lokayuktas Act, 2013** is a statutory body with no constitutional article, and it is separate from the Prevention of Corruption Act.
- The **POSH Act, 2013** requires an Internal Complaints Committee (**ICC**) wherever a workplace has **10 or more** workers; the *Vishaka* guidelines (**1997**) had filled this gap before the Act was passed.
- The **Juvenile Justice Act, 2015** covers children needing care and children in conflict with law, and is the statutory neighbour of **POCSO**.
- The **Aadhaar Act, 2016** gave the **UIDAI** statutory status and anchored Aadhaar to **s.7** subsidy delivery; the Supreme Court in **2018** disallowed its mandatory use for private services, SIM cards, and bank accounts as the Act then stood.
- The **Rights of Persons with Disabilities Act, 2016** replaced the **PWD Act, 1995**, raised the disability benchmark to **40%**, and raised the reservation quota to **4%** from 3%.
- The **Insolvency and Bankruptcy Code, 2016** created the **IBBI** and set resolution timelines (330/180 days, as amended).
- The **Compensatory Afforestation Fund Act, 2016** gave the **CAMPA** fund statutory backing.
- The **101st Amendment** brought in **GST, 2017**, with the **GST Council** (जीएसटी परिषद) under **Art. 279A** running the dual-GST structure.
- The **Mental Healthcare Act, 2017** allows an advance directive, decriminalises a suicide attempt under **s.115**, and treats it as a mental-health issue rather than a crime.
- The **Transgender Persons (Protection of Rights) Act, 2019** protects transgender identity, bars discrimination, and set up a National Council.
- The **Companies Act, 2013** made CSR spending mandatory under **s.135**, and created the **SFIO** along with the **NCLT/NCLAT** tribunal structure.
- The **Motor Vehicles (Amendment) Act, 2019** raised traffic penalties and added Good Samaritan protection for those who help accident victims.
- The **National Medical Commission Act, 2019** replaced the **Medical Council of India (MCI)**.

## Governance Concepts

**Learn the nodal map first** — papers deliberately mix up ministries.

- **Digital India, NeGP, e-Kranti, UMANG,** and **DigiLocker** all sit under **MeitY**.
- The **Citizen Charter, Sevottam, CPGRAMS,** and the **Good Governance Index** all sit under **DARPG** (Ministry of Personnel).
- **Mission Karmayogi**, the **CCS Conduct Rules**, and **lateral entry** all sit under the **DoPT**.
- The **Capacity Building Commission** and **iGOT** operations are run through the CBC and the **Karmayogi Bharat SPV**.
- **Adi Karmayogi (2025)** sits under the **Ministry of Tribal Affairs** — not the DoPT.

- **PRAGATI, e-Samiksha,** and the **DPG** all sit under the **PMO / Cabinet Secretariat** — not MeitY, and not DARPG.
- The parent ministry for DoPT, DARPG, and the Pension department is the **Ministry of Personnel, Public Grievances and Pensions**.

**Expansions** (papers love the full form)

- SMART — Simple, Moral, Accountable, Responsive, Transparent.
- NeGP — National e-Governance Plan. MMP — Mission Mode Project.
- DARPG — Department of Administrative Reforms and Public Grievances. DoPT — Department of Personnel and Training.
- MeitY — Ministry of Electronics and Information Technology (**ministry from 19 Jul 2016**; earlier DeitY).
- CPGRAMS — Centralised Public Grievance Redress and Monitoring System.
- UMANG — Unified Mobile Application for New-age Governance.
- CSC / VLE — Common Service Centre / Village Level Entrepreneur.
- NOFN — National Optical Fibre Network (now **BharatNet**).
- GeM — Government e-Marketplace.
- NPCSCB — National Programme for Civil Services Capacity Building. iGOT — Integrated Government Online Training. FRAC — Framework of Roles, Activities and Competencies. CBC — Capacity Building Commission.
- GGI — Good Governance Index. NCGG — National Centre for Good Governance.
- NeGD — National e-Governance Division. NIC — National Informatics Centre. NISG — National Institute for Smart Government.
- NeSDA — National e-Governance Service Delivery Assessment (**DARPG**).
- PRAGATI — Pro-Active Governance And Timely Implementation.
- DPG — Directorate of Public Grievances (**Cabinet Secretariat, 1988**).

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## E-Governance

E-Governance is the use of ICT to make government **SMART** — **S**imple, **M**oral, **A**ccountable, **R**esponsive, and **T**ransparent. It is **not** a fundamental right, and it is **not** a separate constitutional chapter.

**PYQ — UPPCS Prelims 2024, Q123**

Which of the following statements are correct regarding ICT based e-Governance?

1. e-Governance reduces the transparency of Government.
2. e-Governance reduces the cost of Government.
3. e-Governance increases citizens' input into Government.
4. e-Governance increases bureaucratic red-tapism.

A. 2 and 4 B. 2 and 3 C. 1, 2 and 3 D. 2, 3 and 4

**Show answer**

**Ans: B.** Cost **down**, citizen input **up**. Transparency **rises** (so 1 is false). Red-tape is supposed to **fall** (so 4 is false).

- **G2C** (government to citizen) includes UMANG, DigiLocker, passport services, DBT, and IRCTC.
- **G2B** (government to business) includes **GeM**, GSTN, MCA21, and e-Biz.
- **G2G** (government to government) includes e-Office, PFMS, CCTNS, and the e-Courts backend.
- **G2E** (government to employee) includes e-HRMS and iGOT Karmayogi.

**Stages (UN / textbook):** information (websites, suo motu) → interaction (forms, grievance tickets) → transaction (payment / certificate online) → transformation (process re-engineered, not just digitised paper).

- The **National e-Governance Plan (NeGP)** was approved on **18 May 2006** and rolled out through **Mission Mode Projects**.
- **e-Kranti (2015)**, meaning the electronic delivery of services, is **pillar 5 of Digital India** — it is not a rival mission to Digital India.
- MMPs are classified as Central, State, or Integrated; roughly **27** were started under NeGP, and e-Kranti expanded this to about **44**.
- Well-known MMPs include Passport Seva, MCA21, **e-District**, e-Courts, e-Office, Income Tax e-filing, and the CSC network.
- Behind the scenes, the **NIC** runs the network and applications, the **NeGD** is the programme unit, the **NISG** (set up in 2002 at Hyderabad (हैदराबाद) as a PPP with NASSCOM) supports capacity-building, and the **GI Cloud (MeghRaj, 2014)** provides cloud infrastructure.
- **NeSDA** is DARPG's assessment tool that scores how well States and ministries actually deliver services online.
- The UN's **EGDI** (e-Government Development Index) ranks India's e-governance performance; treat India's rank as current affairs, not a syllabus number to memorise.
- **PRAGATI (25 March 2015)** is the PM's own monthly video-review platform, combining grievance redressal, programme review, and project monitoring in one chair.
- **e-Samiksha** is the Cabinet Secretariat's separate file and project monitor.
- Neither PRAGATI nor e-Samiksha is a Digital India *pillar*.

Examiners typically list e-governance's benefits as cheaper delivery, faster service, less discretion, more citizen participation, and 24×7 access. Its limits include the digital divide, low literacy, last-mile connectivity gaps, language barriers, and privacy or Aadhaar-exclusion concerns — do not write that "e-governance abolished corruption".

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## Citizen Charter

The idea began in the **UK in 1991 under John Major** — not Thatcher, and not Blair. In India, it started with a Chief Secretaries' conference in **1996** and was formalised at the Conference of Chief Ministers in **May 1997**. Its nodal department is **DARPG**, and it is **not** a justiciable statute.

- A Citizen Charter is a public **promise** covering service standards, timelines, the grievance path, and the responsible officer's name.

- It is **not** a statute, and it is **not** ordinarily justiciable — a breach does **not** automatically entitle a citizen to damages.
- The **2nd ARC** (द्वितीय एआरसी) wanted the standards made real, with **compensation** for non-delivery, and closer linkage to the **Sevottam** model.
- The UK version rests on six ideas: Quality, Choice, Standards, Value, Accountability, and Transparency.
- An Indian Charter document typically covers the vision/mission, the services offered, timelines, the grievance mechanism, client duties, and the nodal officer.
- The **1997 Action Plan** rested on three heads: accountable and citizen-friendly administration, transparency through RTI, and improving performance and integrity.

**Right to Public Services / Janhit Guarantee laws are not the same as a Charter.** These are State **Acts** that make listed services time-bound and penalise the responsible officer for delay — a Charter is only a promise, while an RTS law is a **statute**.

- The first comprehensive Right to Public Services Act was passed by **Madhya Pradesh in 2010**.
- **Uttar Pradesh** (उत्तर प्रदेश) passed its own version as the **Uttar Pradesh Janhit Guarantee Adhiniyam, 2011**.
- The real teeth of these laws are a time-limit on the service, a **penalty on the designated officer** for delay, and an appellate officer to hear complaints.
- Do **not** write that "India has a Union Citizen Charter Act" — Union Charters remain DARPG documents, while **States** are the ones that passed RTS statutes.

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## Good Governance

The World Bank's **1992** report *Governance and Development* popularised the phrase "good governance". It is **not** a word used in the Preamble (प्रस्तावना).

**UNDP — eight characteristics** (write all eight; “accountability” is one of them, not a food-security dimension):

1. Participatory
2. Consensus-oriented
3. Accountable
4. Transparent
5. Responsive
6. Effective and efficient
7. Equitable and inclusive
8. Follows the **rule of law**

The World Bank's own **WGI** framework instead uses six indicators: Voice & Accountability, Political Stability, Government Effectiveness, Regulatory Quality, Rule of Law, and Control of Corruption.

- **Good Governance Day** is observed on **25 December**, Atal Bihari Vajpayee's birthday, from **2014** onward — not 26 January, 15 August, or 14 November.
- Its slogan is "minimum government, maximum governance".

- The **Good Governance Index** was first released by **DARPG** in **2019**.
- The **NCGG** (National Centre for Good Governance) works under DARPG, with campuses at Mussoorie (मसूरी) and Delhi.
- An older World Bank list of **four** (चातुर्याम) ideas — accountability, transparency, predictability/legal framework, and participation — is **not** a rival to the UNDP's eight; do not mix up the two counts.
- A classical Indian reference point is Kautilya (कौटिल्य)'s line that the welfare of the people is the welfare of the ruler — this is colour for an answer, not a PYQ date to memorise.

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## Transparency and Accountability

**Transparency is not the same as accountability.** Transparency is a **means**, not a synonym for accountability.

- Transparency means openness of rules, reasons, and data, and its statutory hook is **RTI's s.4** suo motu disclosure requirement.
- Accountability means answerability, **plus** enforcement, **plus** responsiveness.
- Horizontal accountability mechanisms include the **CAG**, the **CIC**, the **Lokpal/CVC**, the media, and the courts.
- Vertical accountability mechanisms include elections, social audit, the citizen charter, and CPGRAMS.
- In the 2025 NFSA trap, **"accountability" is not** listed as a *food-security dimension* — do not dump the UNDP's governance list onto NFSA's food-security dimensions.
- The social-accountability toolkit includes **jan sunwai** (from the MKSS movement in Rajasthan — the same movement behind RTI), the **Citizen Report Card** (pioneered by PAC (लोक लेखा समिति) Bengaluru / Samuel Paul), the community score card, budget tracking, and social audit.
- **Open data** initiatives such as the **NDSAP (2012)** and data.gov.in provide transparency *without* needing an RTI application.

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## Social Audit

A social audit is where people — usually the Gram Sabha — verify whether a scheme's official records match what has actually happened on the ground. It is **not** the same as a **CAG audit** (Art. **148**).

- Under MGNREGA's **s.17**, a social audit **shall** be conducted, with the Gram Sabha as the forum.
- The first Indian **State Act** on social audit was **Meghalaya's Social Audit Act, 2017** — Andhra Pradesh's effort was older but was only a *society* and *practice*, not the first statute.
- Andhra Pradesh's **Society for Social Audit, Accountability and Transparency** pioneered the **implementation** of social audits, even though it was not the first Act.
- Social-audit clauses also exist under NFSA and other schemes — do **not** write that social audit applies "only under MGNREGA".
- The practice traces back to the **MKSS jan sunwai** movement in Rajasthan in the 1990s, the same movement behind RTI — papers still mark MKSS as the **RTI** fact for 2019.
- A **Social Audit Unit (SAU)** must be **independent** of the department implementing the scheme.

- The **Ministry of Rural Development** runs a national social-audit office with NIRDPR support, and the **CAG** has framed social-audit **standards** — but that still does not make it a CAG audit.

## Sevottam Model

**Sevottam** comes from "Seva" + "Uttam" and is a DARPG quality framework launched in **2006**. It is **not** an Act and **not** a constitutional body, and it works through three modules — Charter, Grievance, and Capability.

- Module 1 covers implementation of the **Citizen Charter**, with standards that can actually be measured.
- Module 2 covers receipt and redress of **public grievances**.
- Module 3 covers service-delivery **capability** — people, process, and infrastructure.
- Its quality standard is **BIS IS 15700:2005**, for Quality Management in public service organisations.
- The **2nd ARC's 12th report** adopted (अंगीकृत) Sevottam as its citizen-centric engine.
- Its improvement loop runs in seven steps: define services → set standards → build capacity → deliver → monitor → evaluate → improve.
- Certification is done under **BIS IS 15700**, along with the Quality Council of India or departmental Sevottam certification — this is still **not** a legal requirement.
- Do not confuse Sevottam with Digital India or with CPGRAMS: **CPGRAMS** is the **grievance portal**, while **Sevottam** is the **3-module quality model**.

## Public Grievance Redressal

**CPGRAMS** (at pgportal.gov.in) is DARPG's public grievance portal, with an appeal route and a 30-day disposal norm. It is different from RTI, the Lokpal, the Citizen Charter, and the DPG.

- A citizen can appeal to a higher authority if the disposal of a grievance is poor or delayed, following reforms in **2019** and **2022**.
- DARPG's ordinary time-norm for disposal is **30 days** — this is a guideline, not a fundamental-right clock.
- What matters for evaluation is the **quality** of closure, not simply a count of tickets marked "disposed".
- Its neighbours include **CPENGRAMS** (for pension grievances) and State-level portals such as UP's **IGRS/Jansunwai**; the **2nd ARC** had wanted a strong, independent public-grievance system.
- The **DPG** (Directorate of Public Grievances, Cabinet Secretariat, 1988) instead handles residual grievances against a **listed** set of organisations, after the concerned ministry has failed to resolve them — it is **different from DARPG and from the CPGRAMS portal**.
- In UP, the State's own grievance system is called **Jansunwai / IGRS**, backed by the **CM Helpline 1076** — this is a State portal, not CPGRAMS.

## Digital India

Digital India was launched on **1 July 2015**, with **MeitY** as its nodal ministry. NeGP **folds into** Digital India — the 2015 launch does **not** repeal its 2006 history (इतिहास).

**Three vision areas**

1. Digital **infrastructure** as a utility to every citizen
2. Governance and services **on demand**
3. Digital **empowerment** of citizens

**Nine pillars** (order is asked)

1. Broadband Highways
2. Universal Access to Mobile Connectivity
3. Public Internet Access Programme
4. e-Governance — reforming government through technology
5. **e-Kranti** — electronic delivery of services
6. Information for All
7. Electronics Manufacturing
8. IT for Jobs
9. Early Harvest Programmes

- **MyGov** was launched on **26 July 2014** for citizen engagement — this is slightly **before** the Digital India launch date.
- **DigiLocker** provides cloud storage for documents and is part of the India Stack.
- **UMANG** (Unified Mobile Application for New-age Governance) was launched on **23 November 2017**.
- **BharatNet** aims to connect Gram Panchayats with fibre, and was earlier known as **NOFN (2011)**.
- The **CSC** delivers G2C services at the village level, run by a **VLE**; **CSC 2.0** is the version under Digital India.
- **GeM** (Government e-Marketplace) was launched on **9 August 2016** under the **Commerce Ministry**, as a G2B platform.
- **e-Sign** and **Jeevan Pramaan** provide paperless authentication and a digital life certificate, respectively.
- **JAM** (Jan Dhan–Aadhaar–Mobile) is the pipeline used for **DBT**; the Aadhaar Act itself is covered in the "Important Acts" section above.
- **PMGDISHA** promotes rural digital literacy.
- The **India Stack** consists of Aadhaar, e-KYC, e-Sign, DigiLocker, and **UPI** (run by the NPCI, an economy-syllabus neighbour).
- **Bhashini** is MeitY's language-translation mission; it belongs to the Digital India family but is **not** a 9th pillar.
- **PM-WANI** provides public Wi-Fi for last-mile access.
- **DIKSHA** and **SWAYAM** are education platforms that are neighbours of Digital India / NEP, not polity bodies.

- Open data and MyGov fall under pillar **6** (Information for All); electronics manufacturing and IT jobs are pillars **7–8**; and early-harvest items such as biometric attendance, e-greetings, and Wi-Fi in public spots make up pillar **9**.
- **MeitY** became a full ministry on **19 July 2016** — before that, DeitY was only a *department*.
- The **NeGD** is a programme division under MeitY / the Digital India Corporation.
- The **DIC** (Digital India Corporation) was earlier called Media Lab Asia.
- The **NIC**, from 1976, is the oldest piece of e-governance plumbing — it was **not** created in 2015.

Do not confuse Digital India with **Make in India** or **Smart Cities** — these are 2015-era cousin schemes with different nodal ministries. **PRAGATI** is also **not** a Digital India pillar.

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## Mission Karmayogi

Mission Karmayogi is the **National Programme for Civil Services Capacity Building (NPCSCB)**, approved by the Cabinet on **2 September 2020**. It shifts training from being **rule-based** to being **role-based** and lifelong. The DoPT is its policy owner. **Adi Karmayogi (2025)** belongs to the **MoTA** and is a **different** initiative.

- The **PM's HR Council** is the apex body, chaired by the **Prime Minister**.
- A Cabinet Secretariat Coordination Unit aligns the effort across ministries.
- The **Capacity Building Commission (CBC)** was set up in **April 2021** as the executive arm, preparing annual capacity-building plans and auditing training.
- Its first Chairperson was **Adil Zainulbhai**, and the CBC consists of a Chairperson plus **2** members.
- **Karmayogi Bharat** is a **s.8** company (कंपनी) (SPV) that runs the **iGOT** platform.
- **iGOT Karmayogi** stands for Integrated Government Online Training, and its courses are tagged to the **FRAC** (Framework of Roles, Activities, Competencies).
- The programme rests on three pillars: a **Policy** framework, an **Institutional** framework, and a **Competency** framework.
- Its training pedagogy follows a **70:20:10** split between on-the-job learning, learning from peers, and formal courses.
- It covers all civil servants (**Groups A, B, and C**), starting with the Union, with States able to onboard onto iGOT as well.
- Under FRAC, every role is tagged with its activities and competencies, and courses are mapped accordingly on iGOT.
- Its outlay is often printed as about **₹510 crore** — do not fight a paper over the exact rupee figure.

**PYQ — UPPCS Prelims 2025, Q29**

In June 2025, the “Adi Karmayogi Beta Version – A Responsive Governance Initiative” was launched by which Ministry?

1. AYUSH
2. WCD
3. Social Justice
4. Tribal Affairs

A. 1 and 2 only B. Only 4 C. 2 and 3 only D. Only 1

**Show answer**

**Ans: B — Ministry of Tribal Affairs.** Do **not** mark DoPT / Mission Karmayogi.

## Civil Services Neutrality

This idea traces to the Westminster "steel frame" (a phrase associated with **Sardar Patel** (सरदार पटेल)), resting on **neutrality, anonymity, permanence, and integrity**. The **CCS Conduct Rules, 1964** are **not** the same thing as the 1970s "committed bureaucracy" slogan.

- **Neutrality** means no party work, and giving the same quality of advice to whichever party is in power.
- **Anonymity** means the minister is **publicly** responsible to the House, while the civil servant's file advice stays internal.
- **Permanence** means a career service — governments change, but the secretary remains in post.
- Conduct is governed by the **CCS (Conduct) Rules, 1964** for Central Services, and the **AIS (Conduct) Rules, 1968** for the All-India Services.
- A civil servant **can vote**, but **cannot canvass** or use their office for a political party (राजनीतिक दल).
- The 1970s "**committed bureaucracy**" slogan is the **opposite** of constitutional neutrality — a common trap.
- **Articles 309–312** are service-law provisions, not a "neutrality article": **309** covers recruitment rules, **310** covers the doctrine of pleasure, **311** provides dismissal safeguards, and **312** covers the All-India Services.
- The **2nd ARC** listed integrity, impartiality, commitment to public service, open accountability, devotion to duty, and exemplary behaviour as core civil-service values.
- A retiring secretary needs permission before taking up a private job during the **cooling-off** period; joining a political party soon after retirement is governed by the Conduct Rules, not by Art. 311.
- The **CCS (CCA) Rules, 1965** govern disciplinary procedure (प्रक्रिया), and are **different** from the **Conduct Rules of 1964**.

## Code of Conduct vs Code of Ethics

| | Conduct | Ethics |
|---|---|---|
| What | Do's / don'ts | Values / moral compass |
| India text | CCS Conduct **1964** (AIS **1968**) | No single enforceable "Ethics Act". **2nd ARC 4th report** wanted a **Code of Ethics** |
| Teeth | Disciplinary action | Aspirational unless a Conduct Rule is also broken |
| UK | — | **Nolan 1994** seven principles |

The **Nolan Committee's** seven principles are Selflessness, Integrity, Objectivity, Accountability, Openness, Honesty, and Leadership.

**CCS (Conduct) Rules, 1964 — the specific rule numbers papers test**

- **Rule 3** requires absolute (निरपेक्ष) **integrity**, devotion to duty, and nothing unbecoming of a civil servant.
- **Rule 5** bars canvassing in politics or elections.
- **Rule 9** restricts public criticism of the government.
- **Rule 11** bars unauthorised communication of official information.
- **Rule 13** governs the acceptance of gifts.
- **Rule 18** requires periodic returns of movable and immovable **property**.

The **2nd ARC's 4th report** recommended a Code of Ethics, a Lokpal, a whistle-blower statute, action against collusive bribery, and an ethical framework covering ministers, MPs, judges, and civil servants. It also wanted the **Official Secrets Act amended** so that RTI-style disclosure becomes the default. The Lokpal Act eventually came in **2013**, and the Whistle Blowers Protection Act in **2014**.

The **1997** Conference of Chief Ministers also floated a draft Code of Ethics, but this was **never enacted** as a standalone Act.

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## Lateral Entry

**Lateral entry** is run by the **DoPT/UPSC**, starting with Joint Secretary-level posts advertised from **2018**. It brings in domain specialists on a **3-year contract**, and is **not** a replacement for the regular Civil Services Examination.

- The idea of bringing in **domain specialists** at the **JS / Director / Deputy Secretary** level traces back to the 2nd ARC, the Hota Committee, and the NITI Aayog.
- The **DoPT** advertised the first window in **2018**, and the **UPSC** (संघ लोक सेवा आयोग) conducts the selection; the contract runs for **3 years**, extendable to **5**.
- The first batch joined at JS level in **2019** — **10** JS posts were advertised, and **9** officers actually joined that year.
- Later rounds also advertised Deputy Secretary and Director-level posts.
- A **2024** controversy arose over reservation and roster application, leading some advertisements to be recast — this does **not** mean "the UPSC CSE was abolished".
- Lateral entry is different from the regular **CSE intake**, from ordinary **deputation**, and from **consultants** who sit *outside* a sanctioned post.

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## Second ARC (and the neighbours)

| | 1st ARC (प्रथम एआरसी) | 2nd ARC |
|---|---|---|
| Chair | **Morarji Desai** (1966), later **K. Hanumanthaiah** | **Veerappa Moily** |

| | 1st ARC (प्रथम एआरसी) | 2nd ARC |
|---|---|---|
| When | **1966–70** | Constituted **31 Aug 2005** · reports till **2009** |
| Volume | **20** reports | **15** reports |

**Fifteen 2nd-ARC reports — one fact each**

1. Report 1, **Right to Information**, called RTI the "master key" and pushed for official-secrets reform.
2. Report 2, **Unlocking Human Capital**, made the case for NREGA and other entitlement schemes.
3. Report 3, **Crisis Management**, dealt with disaster machinery — a neighbour of the DM Act.
4. Report 4, **Ethics in Governance**, is the key one: it covers the Code of Ethics, the Lokpal, collusive bribery, and whistle-blower protection.
5. Report 5, **Public Order**, dealt with police and public-order reforms.
6. Report 6, **Local Governance**, reviewed how the 73rd and 74th Amendments were actually working.
7. Report 7, **Capacity Building for Conflict Resolution**, dealt with capacity to manage internal conflict.
8. Report 8, **Combating Terrorism**, sits in the neighbourhood of the NIA (राष्ट्रीय अन्वेषण एजेंसी), UAPA, and AFSPA.
9. Report 9, **Social Capital**, dealt with SHGs and civil society.
10. Report 10, **Personnel Administration**, is another key one: it covers domain assignment, mid-career evaluation, performance, and the logic behind lateral entry.
11. Report 11, **Promoting e-Governance**, pushed the SMART approach through MMPs and CSCs.
12. Report 12, **Citizen Centric Administration**, is a key one: it covers **Sevottam**, Charters with real teeth, and the seven-step service-delivery loop.
13. Report 13, **Organisational Structure of Government of India**, argued for leaner ministries.
14. Report 14, **Financial Management**, covered budgeting and internal control.
15. Report 15, **State and District Administration**, treated the district as the cutting edge of governance.

**Neighbour committees:**

- The **Santhanam Committee (1962)** on corruption led first to the **CVC as an executive body in 1964**, and later to the statutory **CVC Act, 2003**.
- The **P.C. Hota Committee on Civil Services Reforms (2004)** examined recruitment age, domain assignment, and mid-career evaluation — it is **not** part of the 2nd ARC.
- The **Surinder Nath Committee (2003)** examined performance appraisal and promotion.
- The **Yugandhar** and **Alagh** Committees are further neighbours dealing with training and recruitment.

**1st ARC — only the recommendations that still show up as MCQ options**

- The 1st ARC recommended a **Lokpal / Lokayukta (लोकायुक्त)** system in **1966**; the actual Lokpal Act was passed only in **2013**.
- It also proposed a citizens' grievances machinery, the ancestor of today's DARPG and public-grievance cells.
- Its remaining reports covered Centre–State relations, personnel administration, and district machinery — there is no need to memorise all **20** titles.

**2nd ARC recommendations that MCQs actually use** (beyond the 15 report titles)

- On the **Citizen Charter**, it wanted measurable standards backed by **compensation** if a service fails.
- On **e-Governance**, it wanted MMPs and CSCs to actually **re-engineer processes**, not just "scan the paper file".
- On **personnel**, it wanted domain assignment, a mid-career, and **lateral** entry of specialists.
- On **ethics**, it wanted a Code of Ethics kept **separate** from the Conduct Rules, with action against collusive bribery.
- On **RTI**, it wanted the Official Secrets Act to yield to RTI, with suo motu disclosure coming first.
- On **social audit**, it wanted flagship schemes to be audited by an independent Social Audit Unit.

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### UKPCS Prelims 2025

**Q. UKPCS Prelims 2025, Q27**

What was the key focus of the Waqf Amendment Bill introduced in April 2025?

A. Privatization of Waqf properties B. Enhancing transparency and ensuring better governance of Waqf properties C. Abolishing Waqf boards D. Nationalization of religious institutions

**Show answer**

**Logic:** Extreme options (abolish / nationalise) are distractors. **Ans: B (Series B provisional key).** Focus was transparency and better governance of waqf properties — not abolition or nationalisation.

**Q. UKPCS Prelims 2025, Q123**

Which central ministries are responsible for implementation of the Protection of Civil Rights Rules, 1977?

1. Ministry of Home Affairs
2. Ministry of Social Justice and Empowerment
3. Ministry of Minority Affairs
4. Ministry of Tribal Affairs

A. 1 and 2 B. 1, 2 and 3 C. 1, 2 and 4 D. 2, 3 and 4

**Show answer**

**Logic:** Untouchability enforcement ministries — Series B keys Home + Social Justice + Tribal Affairs. **Ans: C (Series B provisional key).** Home Affairs + Social Justice and Empowerment + Tribal Affairs. Minority Affairs is the excluded ministry in this key.

**Q. UKPCS Prelims 2025, Q124**

Arrange chronologically the enactment of the 'Right to Service Act':

(i) Punjab (ii) Assam (iii) Maharashtra (iv) Gujarat

A. (i), (ii), (iii), (iv) B. (ii), (i), (iv), (iii) C. (i), (iii), (iv), (ii) D. (iii), (iv), (i), (ii)

**Show answer**

**Logic:** Punjab early and Maharashtra later bracket the sequence used in the paper. **Ans: A (Series B provisional key).** Order taken by the paper: Punjab → Assam → Maharashtra → Gujarat.

## Mains link (one frame)

Rights on paper become usable only when a **statute** names the duty-holder — as **RTI, RTE, NFSA,** and **FRA** each do — and when delivery is actually **SMART**: a Citizen Charter, the Sevottam model, CPGRAMS, Digital India's nine pillars, and a **neutral** steel frame of civil servants under Mission Karmayogi and the Conduct Rules. Close the answer with the key facts: the **NDMA is chaired by the PM**; **PESA (1996)** applies to Fifth Schedule areas; **e-governance cuts cost and raises citizen voice**, rather than adding red-tape; and **Adi Karmayogi** belongs to the **Ministry of Tribal Affairs**.